INDIANA STATE POLICE	***STANDARD OPERATING PROCEDURE*** State Form 39870(R/S-06)	Reference Number INV-028
	Subject Eyewitness Identification Procedure (Photo Lineup)	
	Special Instructions New	Effective Date **July 1, 2025**

I. PURPOSE

Establish guidelines for the purpose of utilizing a photo lineup to identify person or persons involved in an unlawful act.

II. POLICY

The department employees will conduct photo lineups in accordance with Indiana Code 35-33-4.5, Eyewitness Identification Procedures. Officers shall conduct photo lineups and document said lineups when applicable with the procedures outlined herein.

III. DEFINITIONS

A. EYEWITNESS – A person whose identification by sight of another person may be relevant in a criminal proceeding.

B. FACIAL RECOGNITION TECHNOLOGY – A computer application that uses biometric algorithms to analyze facial features and is used to assist in the unique personal identification of individuals in still or video images.

C. FILLER – A person or a photograph of a person who is not suspected of the offense under investigation and is included in a lineup.

D. LINEUP – A photo lineup.

E. LINEUP INVESTIGATOR – The person who conducts a lineup and who is a current employee of a law enforcement agency, regardless of the person's primary job function.

F. PHOTO LINEUP – A procedure in which an array of photographs is displayed to an eyewitness for the purpose of determining if the eyewitness can identify the perpetrator of a crime.

IV. PROCEDURE

A. A lineup conducted by an officer, or an employee of a law enforcement agency, shall be conducted in accordance with Indiana Code 35-33-4.5.

1. If it is impossible or impracticable to follow the procedures set forth in this procedure, an officer may conduct a lineup using an alternative procedure approved by the law enforcement training board.

B. If facial recognition technology is used to identify a suspect, a law enforcement agency, or an employee of a law enforcement agency, may not conduct a lineup unless there is other evidence, in addition to the use of facial recognition technology, to support a belief that the suspect committed the crime under investigation.

C. A lineup must be conducted as follows, unless an employee is using a process under A.1. above:

1. A lineup investigator shall conduct the lineup.

2. Only one (1) suspect may be included in the lineup.

3. No one may speak to the eyewitness concerning the suspect's position in the lineup or regarding anything that might influence the eyewitness's identification.

4. Each filler in the lineup must generally resemble the eyewitness's description of the perpetrator.

5. The composition of the lineup must ensure that the suspect does not unduly stand out from the fillers.

6. The lineup must include at least five (5) fillers who resemble, as much as practicable, the eyewitness description of the perpetrator in significant features, including any unique or unusual features.

7. If the eyewitness has previously viewed a lineup in connection with the identification of another person suspected of involvement in the offense, the fillers in the lineup in which the current suspect participates must be different from the fillers used in any prior lineups.

8. If there are multiple eyewitnesses, the suspect must be placed in a different position in the lineup for each eyewitness.

9. If the eyewitness makes an identification during the lineup, the lineup investigator shall document any statement from the eyewitness as to the eyewitness's confidence level that the person identified in the lineup is the perpetrator.

D. Before conducting a lineup, the lineup investigator shall instruct the eyewitness that:

1. The perpetrator may or may not be in the lineup;

2. The eyewitness is not required to make an identification;
3. It is as important to exclude innocent persons as it is to identify the perpetrator; and
4. The investigation will continue with or without an identification.

E. If the eyewitness is presented with a photo lineup, the photograph of the suspect must be recent and, to the extent practicable, must resemble the suspect's appearance at the time of the offense.

F. An in-person witness identification, which occurs shortly after the commission of a crime occurs, shall be recorded by video, unless a law enforcement recording device is not available to the officer and recording is otherwise not practicable under the circumstances when:

1. A law enforcement officer requests that a witness observe an individual in person; and

2. The witness is being asked to observe the individual for the purpose of determining whether the witness can identify the individual as the perpetrator of a crime.

H. This procedure shall be used in conjunction with all relevant Department regulations, rules, policies, and procedures.